

October 9, 2008



U.S. Department  
of Transportation

East Building, PHH – 30  
1200 New Jersey Avenue, Southeast  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 14334  
(SECOND REVISION)

|                                |
|--------------------------------|
| EXPIRATION DATE: June 30, 2012 |
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(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Rohm and Haas Chemicals LLC  
Philadelphia, PA
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the use of video cameras and monitors to observe the loading incidental to movement or unloading incidental to movement of certain Class 3, Division 6.1, Class 8, and Class 9 materials and Combustible liquids at the Louisville, KY, Rohm and Haas Chemicals LLC facility in place of personnel remaining within 25 feet of a cargo tank motor vehicle. This special permit only applies to loading or unloading operations meeting the definition of "loading incidental to movement" or "unloading incidental to movement" as those terms are defined in § 171.8 of the Hazardous Materials Regulations (HMR). This special permit provides no relief from the HMR other than as specifically stated herein.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 177.834(i)(3) in that the loading or unloading of a cargo tank without the attendance of a qualified person within 25 feet of the cargo tank is not authorized, except as specified herein.

**October 9, 2008**

5. BASIS: This special permit is based on the applications of Rohm and Haas Chemicals LLC, dated June 27, 2008 and July 24, 2008, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| <b>Hazardous Materials Description</b>                                                                                                  |                               |                              |                      |
|-----------------------------------------------------------------------------------------------------------------------------------------|-------------------------------|------------------------------|----------------------|
| <b>Proper Shipping Name</b>                                                                                                             | <b>Hazard Class/ Division</b> | <b>Identification Number</b> | <b>Packing Group</b> |
| Class 3, Division 6.1, Class 8, and Class 9 materials and combustible liquids authorized in DOT Specification cargo tank motor vehicles | 3, 6.1, 8, 9, and Combustible | Various                      | II and III           |

7. SAFETY CONTROL MEASURES:

a. PACKAGING - The Class 3, Division 6.1, Class 8, and Class 9 materials and combustible liquids must be transported in authorized DOT specification cargo tank motor vehicles.

b. OPERATIONAL CONTROLS -

(1) Each cargo tank must be loaded or unloaded by qualified persons, who are familiar with the product and with the proper procedures for its safe handling.

(2) The provisions of § 177.834 (i) must be complied with except that paragraph (3) is replaced with the following:

"A designated Production Operator must observe all loading or unloading operations by means of a video monitor located in the remote control station. The loading or unloading system must be equipped with the following:

- (i) The video camera must have a motorized zoom lens, and must be capable of panning and zooming from the remote control station. The

**October 9, 2008**

camera must be mounted so as to provide an unobstructed view of all equipment involved in loading or unloading operations of the cargo tank. This must include all valves, hoses, domes, and safety relief devices. In addition, the view capability must include the entire containment area.

(ii) Upon loss of video, loading or unloading operations must be immediately terminated. Shut-off valves operable from the remote control station must be provided.

(iii) In the event of a remote system failure, the Production Operator must immediately resume attending loading or unloading operations within 25-feet of the cargo tank.

(iv) A containment area must be provided capable of holding the contents of as many cargo tank motor vehicles as might be loaded at the facility at any single time."

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be conspicuously displayed at the remote control station at the Louisville, KY facility.

b. The Production Operator must visually inspect each cargo tank motor vehicle after it is loaded, prior to departure.

c. Written procedures for training of the Production Operators, for their adherence to standard operating procedures, and for inspection and maintenance of video equipment and of the shut-off valve/remote control system must be on file with the Office of Hazardous Materials Special Permits and Approvals prior to operating under the terms of this special permit. Rohm and Haas Chemicals LLC must continuously maintain a current list of qualified Production Operators. A copy of this list must be available for inspection during normal working hours.

**October 9, 2008**

d. This special permit applies only to loading incidental to movement or unloading incident to movement at the Rohm and Haas Chemicals LLC facility located at 4300 Campground Road, Louisville, KY.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

11. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§171.15 - Immediate notice of certain hazardous

**October 9, 2008**

materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Theodore L. Willke  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: CHH/AM